

any sense be the executors of Wade, with whose own property they are not to intermeddle, it is not material to determine." His Honour, therefore, decided that the power had become extinguished.

6. **The estate may be severed from the powers.**—But the existence of a power annexed to a trust and forming an integral part of it does not depend on the continuance of the legal estate *per se* in the donee of the power, where there is no express declaration to the contrary; as, where a testator gave a sum of money to be invested in the funds in the names of the head of a college at Oxford, the junior bailiff of the city, and the elder churchwarden of a parish, the dividends to be applied to certain purposes as the trustees should approve, and the bailiff and churchwarden being *annual* officers, the investment as directed by the will would have been accompanied with frequent transfers of the stock, the Court ordered that the money should be invested in the names of two new trustees jointly with the head of the college, but that the objects of the charity should be nominated and approved in the manner pointed out by the will (a).

[7. **Release of powers under recent Act.**—By the Conveyancing and Law of Property Act, 1881, "a person to whom any power, whether coupled with an interest or not, is given may by deed release, or contract not to exercise the power;" and that, whether the power was created by an instrument coming into operation before or after the commencement of the Act (b).

**Does not apply to power coupled with a duty.**—But it has been held that this does not apply to a power coupled with a duty; as to which Kay, J., observed, "a trustee who has a power coupled with a duty is bound, so long as he remains a trustee, to preserve that power, and to exercise his discretion as circumstances arise whether the power shall be used or not, and can no more by his own voluntary act destroy a power of that sort than he can voluntarily put an end to any other trust that may be committed to him" (c).]

(a) *Ex parte* Blackburne, 1 J. & W. 297; and see *Hibbard v. Lamb*, Amb. 309.

[(b) 44 & 45 Vict. c. 41, s. 52.]

[(c) *Re Eyre*, 49 L. T. N. S. 259.]